

Cybercrime Law, Digital Journalism and Press Freedom in Nigeria: A Legal Appraisal of Section 24 of the Cybercrimes Act

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Abstract

The rapid expansion of digital journalism has transformed the production, distribution and consumption of news in Nigeria. It has also created new opportunities for cyberstalking, online harassment, threats, impersonation, fraud and the deliberate dissemination of harmful falsehoods. The State therefore has a legitimate interest in regulating serious forms of online harm. The difficulty arises where criminal regulation of digital communication overlaps with constitutionally protected freedom of expression and freedom of the press. This article examines section 24 of the Cybercrimes (Prohibition, Prevention, etc.) Act 2015 and its amendment in 2024, with particular attention to its implications for digital journalism and press freedom. It adopts a doctrinal legal research methodology, supported by a focused case study of section 24 and the principal judicial decisions concerning its validity and application. The analysis draws on Nigerian legislation, constitutional provisions, judicial decisions, regional and international human rights instruments, scholarly literature and documented enforcement practices. The article argues that the original section 24 was problematic because it combined serious forms of online harm with expressions such as “annoyance”, “insult”, “ill will” and “needless anxiety”, thereby creating considerable uncertainty about the boundary between criminal conduct and legitimate expression. The Court of Appeal in *Okedara v Attorney General of the Federation* upheld the provision, while the ECOWAS Court of Justice subsequently found that Nigeria’s maintenance of the original provision violated its international human rights obligations and directed Nigeria to amend or repeal it. The 2024 amendment substantially narrowed subsection 24(1) by removing several subjective expressions and concentrating liability on pornographic content and knowingly false communications intended to cause a breakdown of law and order or pose a threat to life. Questions concerning interpretation, enforcement and adequate protection for public-interest journalism nonetheless remain. The article concludes that the legitimacy of section 24 cannot be assessed solely by reference to the wording of the statute; its constitutional and human rights acceptability also depends on how the provision is interpreted and enforced. The article accordingly advocates a restrained, rights-sensitive approach grounded in legality, legitimate aim, necessity, proportionality and the protection of bona fide public-interest journalism.

Keywords: Cybercrime, digital journalism, freedom of expression, press freedom, section 24, Cybercrimes Act, Nigeria, online speech

Introduction

The digital transformation of journalism has altered the relationship between the media, the public and the State. News is no longer produced exclusively by established newspapers, television

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stations and radio broadcasters. Journalists now publish through news websites, blogs, social media platforms, newsletters and other digital channels, while ordinary citizens can publish information, circulate documents and participate directly in public debate. A report may reach thousands of people within minutes of publication.¹ This development has strengthened public participation and created new opportunities for investigative journalism. Digital platforms have enabled journalists and citizens to scrutinise public officials, expose corruption, mobilise communities and contribute to debates on matters of public concern. Anderson and Singer have demonstrated the ways in which digital technologies have altered traditional journalistic gatekeeping and the relationship between professional journalists and their audiences.²

The same technological environment, however, has facilitated cyberstalking, impersonation, malicious falsehood, online harassment, fraud and coordinated disinformation.³ These forms of conduct may cause real, and sometimes serious, harm. Cybercrime regulation is therefore not inherently inconsistent with democratic governance; the State has a legitimate responsibility to protect individuals, institutions and public order from serious digital abuse.⁴ The difficulty arises when legislation directed at genuine online harm is framed, or enforced, in a manner that also captures legitimate expression. This concern became particularly acute under section 24 of the Cybercrimes (Prohibition, Prevention, etc.) Act 2015. The original provision criminalised a wide range of communications, including those described as “grossly offensive”, “indecent”, “obscene” or “menacing”, as well as knowingly false communications intended to cause, among other things, annoyance, inconvenience, insult, injury, enmity, hatred, ill will or needless anxiety.⁵

The breadth of the provision attracted sustained criticism, since several of these expressions were capable of capturing speech that was merely offensive or uncomfortable, without necessarily being seriously harmful. This was particularly significant for journalists, whose work may, by its nature, expose misconduct, challenge official narratives or generate public controversy. *Adibe, Ike and Udeogu* accordingly argued that the provision created real risks for press freedom.⁶ The constitutional question was therefore never whether Nigeria could regulate cybercrime; it plainly could. The more difficult question was whether the criminal law could restrict online expression with sufficient precision and proportionality to prevent serious harm, without unnecessarily interfering with constitutionally protected speech.⁷

This article examines that question by comparing the original section 24 with the amended provision introduced in 2024. It focuses in particular on the implications of the provision for digital journalism and press freedom, and on the approaches taken by Nigerian and regional courts. The article addresses four principal questions:

1. What were the principal legal difficulties associated with the original section 24?
2. How did section 24 affect digital journalism and press freedom?
3. How have Nigerian and regional courts approached the validity and human rights implications of the provision?
4. To what extent has the 2024 amendment resolved the concerns associated with the original provision?

The central argument advanced is that cybercrime legislation and press freedom are not necessarily competing values. Properly drafted and carefully enforced, cybercrime law can protect individuals and society against serious digital harm while respecting legitimate journalism. The difficulty lies in maintaining that distinction in both legislation and enforcement.

Methodology

This article adopts a doctrinal legal research methodology, supported by a focused case-study approach. The principal case study is section 24 of the Cybercrimes Act, examined in its original form and following its amendment in 2024. The doctrinal analysis draws on the Constitution of the Federal Republic of Nigeria 1999 (as amended); the Cybercrimes (Prohibition, Prevention, etc.) Act 2015; the Cybercrimes (Prohibition, Prevention, etc.) (Amendment) Act 2024; the African Charter on Human and Peoples' Rights; the International Covenant on Civil and Political Rights; relevant Nigerian judicial decisions; and decisions of the Economic Community of West African States (ECOWAS) Court of Justice.

Particular attention is given to *Okedara v Attorney-General of the Federation and Incorporated Trustees of Laws and Rights Awareness Initiatives v Federal Republic of Nigeria*, since the two decisions provide an instructive basis for examining the divergent approaches to section 24 adopted by the Nigerian Court of Appeal and the ECOWAS Court. The study also considers documented cases involving journalists and online publications. Such examples are used cautiously and are distinguished from judicial findings. Reports by organisations such as the Committee to Protect Journalists and Reuters are treated as evidence of reported enforcement practice, rather than as substitutes for court decisions. The analysis is principally concerned with statutory interpretation, constitutional reasoning and human rights standards. It applies the related principles of legality, legitimate aim, necessity and proportionality in assessing restrictions on freedom of expression.

Digital Journalism, Cybercrime and the Nigerian Legal Problem

Digital journalism has changed the structure of the Nigerian media landscape. The traditional media environment was characterised by identifiable newspapers, publishers, editors, broadcasters and established media institutions. Digital journalism has substantially altered that structure: a journalist may now publish through a newspaper website, an independent online platform, a blog, X, Facebook, YouTube or an electronic newsletter, and a citizen may publish information before a conventional newsroom even becomes aware of it. This development carries significant democratic value. Digital journalism can expand access to information, facilitate citizen participation and subject public officials and institutions to greater scrutiny. It has also reduced some of the traditional barriers to entry into journalism.

At the same time, the digital environment creates genuine risks. False information can spread rapidly, reputational harm can occur almost instantaneously, and online threats may translate into physical consequences. Research by Lazer and others, and by Vosoughi, Roy and Aral, demonstrates the significance of misinformation in contemporary digital communication.⁸ The State therefore has a legitimate interest in preventing serious online harm. The existence of that interest, however, does not justify imprecise criminal legislation. Criminal offences must be sufficiently clear to enable individuals to understand what conduct attracts criminal liability, and this requirement is particularly important where the prohibited conduct consists of speech.⁹

The original section 24 operated at precisely this difficult intersection. It addressed legitimate concerns, such as cyberstalking and threatening communications, but also employed expressions capable of extending criminal liability into areas of criticism, controversy and political disagreement. The constitutional framework is important in this regard. Section 39 of the Nigerian Constitution protects freedom of expression, including the freedom to receive and impart ideas and

information. Section 45 recognises that these freedoms may be restricted where the restriction is reasonably justifiable in a democratic society for specified purposes, including public safety, public order and the protection of the rights and freedoms of others.¹⁰ The constitutional question, therefore, is not whether expression may ever be restricted; it may. The question is whether the restriction is sufficiently clear, directed towards a legitimate objective, and proportionate to that objective.

Section 24 Before and After the 2024 Amendment

Table 1: Subsection 24(1)(a)–(b) of the Cybercrimes Act in its original and amended form

Section 24(1)(a)–(b) of the Cybercrimes (Prohibition, Prevention, etc.) Act 2015	Section 24(1)(a)–(b) of the Cybercrimes (Prohibition, Prevention, etc.) Act 2015 (as amended by the 2024 Amendment Act)
A person who knowingly or intentionally sends a message or other matter by means of a computer system or network that: (a) is grossly offensive, pornographic, or of an indecent, obscene or menacing character, or causes any such message or matter to be so sent; or (b) he knows to be false, for the purpose of causing annoyance, inconvenience, danger, obstruction, insult, injury, criminal intimidation, enmity, hatred, ill will or needless anxiety to another, or causes such a message or matter to be sent, commits an offence under this Act and shall be liable on conviction to a fine of not more than ₦7,000,000.00 or imprisonment for a term of not more than three years, or to both such fine and imprisonment.	A person who knowingly or intentionally sends a message or other matter by means of a computer system or network that: (a) is pornographic; or (b) he knows to be false, for the purpose of causing a breakdown of law and order, or posing a threat to life, or causing such a message to be sent, commits an offence under this Act and shall be liable on conviction to a fine of not more than ₦7,000,000.00 or imprisonment for a term of not more than three years, or to both such fine and imprisonment

The original section 24 attracted criticism because it brought substantially different categories of communication together under a single criminal provision. It addressed pornography, indecent or obscene communications, menacing communications and knowingly false communications directed towards a wide range of consequences, including annoyance, inconvenience, insult, injury, hatred, ill will and needless anxiety.¹¹ The breadth of these expressions created real difficulty. A threat of serious physical harm is fundamentally different from an insulting political statement, and a deliberately false message intended to provoke public disorder is different from an investigative report whose factual accuracy happens to be disputed. Treating substantially different forms of communication under one broad criminal provision risks weakening the principle of legality.

The 2024 amendment represents a significant textual change. Section 24(1) now focuses principally on pornographic communications and communications known to be false, where the statutory purpose is to cause a breakdown of law and order or to pose a threat to life. The amendment removed several of the expressions that had generated the strongest criticism of the original provision.¹²

This narrowing is important. It moves the provision away from subjective reactions, such as annoyance, insult and needless anxiety, and towards more objectively serious forms of harm. The amendment does not, however, end the legal debate. “*Breakdown of law and order*” will require careful judicial interpretation, and the expression must not be understood so broadly that a controversial publication, an act of public criticism or a legitimate investigative report becomes criminal merely because it generates public disagreement or official discomfort. There is also no express public-interest defence protecting journalists, whistle-blowers or civic actors. The absence of such a defence does not necessarily render the provision invalid, but it leaves an important safeguard dependent on constitutional interpretation and prosecutorial restraint.

A further point is that the 2024 amendment should not be understood as eliminating all speech-related liability under section 24, since other subsections continue to address serious forms of threatening, harassing and extortionate communication. The proper inquiry is therefore whether the particular conduct falls within the statutory offence, and whether the prosecution can establish every required element. In summary, the 2024 amendment materially narrowed subsection 24(1)(a) and (b). It removed the cluster of subjective and potentially expansive expressions that characterised the original provision and retained liability for more specifically identified categories of communication.¹³

Constitutional and Human Rights Standards

Freedom of expression is central to democratic government because it protects not only the speaker, but also the public’s right to receive information. This is particularly important in the context of journalism, since investigative reporting frequently involves criticism of public officials, scrutiny of government expenditure, allegations of misconduct and discussion of matters that powerful persons may find uncomfortable.

Article 19 of the ICCPR permits restrictions on freedom of expression only where they are provided by law and are necessary for specified legitimate purposes. Article 9 of the African Charter similarly protects the right to receive information and to express and disseminate opinions within the law.¹⁴ These provisions do not create an absolute right to unrestricted online communication. They require, however, that any restriction satisfy the standards of legality, legitimate purpose and necessity.

The principle of legality requires particular care where criminal sanctions are involved. Individuals should not be required to speculate about whether their expression may expose them to criminal prosecution, and a criminal restriction on speech must accordingly be sufficiently precise.¹⁵

Necessity and proportionality are equally important. A restriction may pursue a legitimate public objective and nevertheless be excessive; the State must demonstrate a sufficient connection between the prohibited conduct and the harm it seeks to prevent.¹⁶ These considerations have practical importance beyond conviction. In speech-related cases, the process itself may have a chilling effect. Arrest, detention, bail conditions, device seizure, legal expense and reputational damage can discourage future publication even where the journalist is ultimately acquitted.¹⁷

Judicial Treatment of Section 24

The judicial history of section 24 reveals an important divergence between domestic constitutional

adjudication and regional human rights review. In *Solomon Okedara v Attorney-General of the Federation*, the Court of Appeal rejected a constitutional challenge to section 24(1). The Court considered the provision sufficiently clear and held that the restriction fell within the permissible limitations recognised by the Constitution.¹⁸

The significance of *Okedara* lies in its recognition that freedom of expression is not absolute, and that the State possesses legislative authority to address serious online misconduct and to protect public order and the rights of others. The decision nevertheless leaves room for further analysis concerning the practical implications of expressions such as “annoyance”, “insult”, “ill will” and “needless anxiety”. The constitutional inquiry is not exhausted by establishing that the legislature possesses power to regulate cybercrime; the scope and proportionality of the particular restriction must also be examined.

A different approach was adopted by the ECOWAS Court of Justice in *Incorporated Trustees of Laws and Rights Awareness Initiatives v Federal Republic of Nigeria*. The Court found that Nigeria’s maintenance of the original section 24 violated its obligations under the African Charter and the ICCPR and directed Nigeria to repeal or amend the provision in line with those obligations.¹⁹ The importance of that decision lies in its emphasis on legal certainty and proportionality. The Court’s concern was not that Nigeria lacked a legitimate interest in combating cybercrime, but that the breadth of the original criminal restriction was incompatible with the protection of freedom of expression.

The two decisions therefore provide an instructive contrast. *Okedara* demonstrates the domestic court’s willingness to recognise legislative authority to regulate cybercrime, while the ECOWAS decision places greater emphasis on the international human rights standards applicable to restrictions on expression.²⁰ The 2024 amendment should be understood against this background. It removed several of the expressions that generated the strongest concerns under the original provision. The existence of the amendment does not, however, remove the continuing importance of judicial interpretation and enforcement practice.

A further ECOWAS Court decision concerning the amended section 24, delivered in 2026, is also significant. In *The Incorporated Trustees of the Socio-Economic Rights and Accountability Project (SERAP) v Federal Republic of Nigeria*, the Court is reported not to have found sufficient evidence establishing that the amended legislation is inherently incompatible with applicable international human rights standards, or that Nigerian authorities had arbitrarily applied it in the manner alleged.²¹ The present position is therefore more nuanced than a simple reading of the amendment might suggest. The original provision was the subject of the adverse 2020 ECOWAS judgment, while the amended provision remains subject to constitutional and human rights scrutiny in individual cases.

Enforcement, Journalism and the Chilling Effect

The legal significance of section 24 cannot be assessed from its text alone; enforcement practice matters just as much. Reports concerning journalists such as *Agba Jalingo* and *Daniel Ojukwu* illustrate why this issue remains important. Such reports should not be treated as judicial determinations that the journalists committed no offence, or that law-enforcement agencies acted unlawfully. Their relevance lies elsewhere: they demonstrate how criminal cybercrime legislation may intersect with journalistic activity, and how the initiation of criminal process may itself affect

press freedom.²²

The chilling effect is particularly significant in the digital media environment. A journalist need not be convicted for the criminal law to influence editorial decision-making; the mere possibility of arrest, detention, seizure of electronic devices or prolonged investigation may be sufficient to discourage publication. This risk is especially acute for smaller digital media organisations, which may lack the financial resources of established media houses. The cost of defending a criminal allegation can itself become a powerful incentive to avoid controversial investigations.

The issue is therefore not merely whether section 24 produces convictions, but whether the existence and use of the provision create a climate in which journalists reasonably fear criminal consequences for legitimate public-interest reporting. This is not to say that journalists should be immune from the criminal law. Freedom of the press does not protect deliberate threats, harassment, extortion or knowingly false communications intended to cause serious harm. The essential distinction is between journalism that causes discomfort because it exposes matters of public concern, and communication that is deliberately directed towards serious unlawful harm.

False Information, Public Order and Public-Interest Journalism

Nigeria has a legitimate interest in addressing deliberately false online communications capable of causing serious harm. False information can produce panic, undermine public confidence and, in appropriate circumstances, threaten life or public order.²³ The difficulty lies in distinguishing deliberate harmful falsehood from legitimate journalistic activity. Investigative journalism is often conducted while facts are still developing, and a journalist may publish information honestly believed to be accurate, only to discover subsequently that some details require correction.

Criminal liability should not, therefore, arise merely because a publication contains an error, is disputed by a public official, or causes reputational discomfort. The relevant distinction is between a communication that is knowingly false and intentionally directed towards serious harm, and a publication made in good faith on a matter of public interest.²⁴ Where an investigation concerns corruption, public expenditure, abuse of office, public safety or governance, the law should give appropriate weight to the democratic value of the publication. In appropriate circumstances, correction, a right of reply and civil defamation proceedings may offer more proportionate responses to inaccuracy than criminal prosecution. The 2024 amendment moves in this direction by removing several subjective expressions from subsection 24(1). The absence of an express public-interest safeguard nevertheless remains an area deserving further legislative and judicial attention.

Comparative Perspective: The United Kingdom

The United Kingdom provides a useful comparative reference, although its statutory framework cannot simply be transplanted into Nigeria. The Online Safety Act 2023 addresses false and threatening communications in sections 179–181. Section 179 establishes a false communications offence based on knowingly false information, the absence of a reasonable excuse, and an intention to cause non-trivial psychological or physical harm to a likely audience. Section 180 provides exemptions, including one for recognised news publishers. Section 181 addresses threatening communications involving specified forms of serious harm and incorporates an intention or recklessness requirement.²⁵

The significance of this model is not that the United Kingdom has solved the problem of regulating online speech, but that it illustrates the importance of identifying the prohibited harm and the

required mental element with reasonable precision. The Nigerian experience suggests that the most defensible cybercrime provisions are those directed towards serious threats, harassment, deliberate harmful falsehood and other clearly identifiable forms of online abuse. The criminal law should be slow to intrude into the ordinary democratic contest of ideas, political criticism and investigative journalism. The comparative lesson is therefore one of precision and restraint, rather than of wholesale legislative imitation.

Findings and Discussion

The analysis yields five principal findings. First, cybercrime regulation serves a legitimate public purpose. Cyberstalking, threats, harassment and deliberately harmful falsehoods are genuine forms of online harm, and the State is entitled, and in some circumstances obliged, to protect individuals and public institutions from serious digital abuse.²⁶ Secondly, the original section 24 was excessively broad. The inclusion of expressions such as *annoyance*, *insult*, *ill will* and *needless anxiety* created considerable uncertainty about the boundary between unlawful online conduct and protected expression. This was particularly problematic where the complainant was a public official or other powerful individual, and the communication arose from journalism or political criticism.²⁷

Thirdly, the judicial decisions reveal different approaches to the protection of expression. The Court of Appeal in *Okedara* upheld the original provision, while the ECOWAS Court subsequently found that Nigeria's maintenance of the provision violated its international human rights obligations. The difference illustrates the importance of examining not merely legislative competence, but also the precision and proportionality of the particular speech restriction.²⁸ Fourthly, the 2024 amendment represents substantial progress, but it does not resolve every concern. The removal of several subjective expressions from subsection 24(1) materially narrowed the provision, but questions remain concerning the interpretation of "*breakdown of law and order*", the absence of an express public-interest defence, and the continuing need for restraint in enforcement. The 2026 ECOWAS decision also makes clear that the amended provision cannot simply be characterised as already invalid under international human rights law.²⁹

Lastly, enforcement remains central to the protection of press freedom. A narrowly drafted provision may still threaten journalism if arrests, detention, device seizures or prolonged investigations are routinely used in response to public-interest publications. Conversely, a properly restrained enforcement culture can allow legitimate cybercrime regulation to coexist with robust journalism. The central issue is therefore not whether Nigeria should regulate online harm, but whether the criminal law can do so without transforming criticism, investigation and public-interest reporting into criminal conduct.

Recommendations

Strict and rights-sensitive interpretation

Courts and prosecutors should interpret section 24 narrowly where the alleged conduct concerns expression. The prosecution should be required to establish every statutory element, including the requisite knowledge and intention. Mere embarrassment, criticism, political disagreement or reputational discomfort should not, by themselves, justify criminal prosecution.³⁰

Express protection for public-interest journalism

The National Assembly should consider introducing an express public-interest safeguard covering

bona fide journalism, whistle-blowing and civic communication on matters such as corruption, public expenditure, abuse of office, public safety and governance, subject to appropriate requirements of good faith and reasonable verification.³¹ Such a safeguard would not confer immunity on journalists. Rather, it would provide an additional mechanism for distinguishing legitimate public-interest communication from deliberate harmful falsehood or other serious criminal conduct.

Prosecutorial guidelines

The Attorney-General of the Federation should develop clear prosecutorial guidelines for speech-related cybercrime complaints. Before prosecution is commenced, authorities should consider whether the complaint concerns serious criminal harm, whether the evidence establishes the required mental element, whether civil remedies are adequate, and whether the communication has a substantial public-interest dimension.³²

Restraint in arrest and investigation

Arrest should not automatically be the first response to complaints arising from journalistic publications. Investigative invitations, voluntary statements and other less intrusive measures should ordinarily be considered where there is no credible evidence of flight risk, destruction of evidence or an immediate threat to life or physical safety. The purpose of this recommendation is not to create immunity from investigation, but to encourage a proportionate response to speech-related complaints, particularly where the alleged conduct arises from identifiable journalistic activity.

Judicial protection of journalistic materials

Courts should scrutinise applications involving the seizure of journalists' devices, confidential materials and source information. Such measures should be authorised only where genuinely necessary and proportionate to a legitimate investigative purpose.³³ The protection of journalistic materials is particularly important in the digital environment, because a single device may contain confidential sources, unpublished investigations, personal information and material wholly unrelated to the allegation under investigation.

Strengthening editorial standards

Media organisations should strengthen fact-checking, source verification, documentation and legal review in sensitive investigations. Press freedom does not eliminate the professional responsibility to verify information; strong editorial standards can simultaneously improve journalism and reduce opportunities for the misuse of cybercrime complaints.

Harmonisation with international human rights obligations

Nigeria's interpretation and enforcement of section 24 should remain consistent with Article 9 of the African Charter and Article 19 of the ICCPR. Press freedom should be understood as part of democratic governance and public accountability, rather than as an obstacle to legitimate cybercrime enforcement.³⁴

Conclusion

The controversy surrounding section 24 of the Cybercrimes Act illustrates a broader challenge confronting modern legal systems: how to regulate genuine digital harm without unnecessarily restricting democratic expression. Nigeria has a legitimate interest in combating cyberstalking, online threats, harassment, deliberate harmful falsehoods and other serious forms of digital abuse.

That legitimate interest, however, does not justify criminal provisions so broad or uncertain that they may capture ordinary political criticism, investigative journalism or public-interest reporting. The original section 24 presented precisely this difficulty. Its combination of serious forms of cyber abuse with expressions such as annoyance, insult, ill will, and needless anxiety created significant uncertainty and contributed to concerns about over-criminalisation.³⁵ The divergent judicial approaches in *Okedara* and the 2020 ECOWAS decision demonstrate the constitutional and human rights tensions generated by the provision.³⁶

The 2024 amendment constitutes an important improvement. It removes several of the most problematic expressions and concentrates subsection 24(1) on more serious categories of online communication, and it should therefore be regarded as a meaningful legislative response to the concerns surrounding the original provision. It is not, however, the end of the reform process. The interpretation of “*breakdown of law and order*”, the continuing operation of other parts of section 24, the absence of an express public-interest safeguard, and the manner in which law enforcement agencies respond to journalistic complaints all remain matters of legitimate concern.³⁷ The emerging legal position should accordingly be approached with caution. The original section 24 was found by the ECOWAS Court to be inconsistent with Nigeria’s international human rights obligations, while the amended provision has not been judicially invalidated by that Court. The constitutional question therefore increasingly turns on interpretation and enforcement.³⁸

Ultimately, the objective should not be to choose between cybercrime regulation and press freedom. The better approach is to construct a legal framework in which both can operate. Cybercrime law should protect individuals and society against genuine digital harm, while the criminal law should not become an instrument for silencing criticism, discouraging investigation or suppressing information of legitimate public concern. Section 24 will best serve its purpose when it is applied as a carefully defined response to serious online harm, rather than as a convenient mechanism for resolving disputes over uncomfortable speech. The protection of digital security and the protection of press freedom are not inherently contradictory; both are essential to a functioning democratic society.

End notes

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